



File No.: EXP202317846

RESOLUTION FOR FILING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On February 14, 2023, a complaint was filed with registration number REGAGE23e00009406878 before the Spanish Agency for Data Protection against A.A.A. with NIF ***NIF.1 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that they are a neighbor of the complained party and that the latter has installed, at the door of their home, a digital peephole that records common areas of the building where both parties have their residence, without the authorization of the Homeowners' Association. Images of the digital peephole are provided (Annex I Frames 1-2).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the complaint was duly forwarded to the complained party in a timely manner, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

Upon consulting the database of this agency, the complained party has not provided any response to the forwarded complaint.

THIRD: On May 14, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

LEGAL GROUNDS

I

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, we proceed to examine the complaint dated 14/02/23 through which the "presence of a digital peephole" installed at the door of the property of the complained party is reported, which may allegedly capture images of the common area located in front of the door of the residence.

The previously described facts may imply an infringement of the content of Article 5 GDPR or even Article 6 GDPR, in the event that the purpose of the device is not merely that of a simple peephole and acts as a video camera controlling the common areas of the floor of the property in question in a disproportionate manner or lacks a legitimizing basis.

There are various models of digital peepholes available on the market, easily purchasable both in physical stores and online, proliferating their use as an additional security measure for the home or as a tool to assist people with reduced mobility or advanced age.

The characteristics of the digital peephole allow for the processing of personal data in the event that the doorbell of the residence is pressed, at which point a frame is obtained that is subject to storage for verification by the owner.

Thus, the device in question serves as a traditional peephole, capturing an image of the same physical space that would be observed if looking through a traditional peephole.

By the right to privacy, we conceive the respect for the personal and family sphere of individuals and

the freedom and self-determination of its holder in that private sphere, which also implies a power of exclusion, consisting of preventing external knowledge of private life.

The right to privacy has different facets, depending on the type of harmful conduct we consider. It can be violated through acts of disclosure or public dissemination, direct bodily interventions, acts of indiscretion with sophisticated technology, etc.

Regarding the impact on privacy, there is no further explanation needed than that the landing or hallway of the property is merely a transit area, with privacy developing within the interiors of the homes.

In this regard, the ruling 00137/2015, dated April 22, 2015, from the Criminal Court No. 1 of Vigo, clarifies in its First Legal Ground: "(...) There is abundant and settled case law that, when dealing with video recordings, considers that these only affect the right to privacy if they have been made in what constitutes the dwelling or spaces where the citizen carries out their private activity, but that such an attack does not occur if the recording is made in open spaces or common areas of a property such as...

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In the case at hand, having recorded images in a garage that is a common area (...)

It cannot be understood that there exists such intimacy in a garage of a community of property owners that would prevent recordings, given that it is a common space, just like the stairways leading to the residences of the community, which are devoid of any privacy, understood from the perspective of a constitutionally protected personal intimacy, as it is an area accessible to members of the community, and therefore public, in the sense that it allows access to this area for all members of the community. This circumstance is relevant when applying existing jurisprudence on this matter, in which the 2nd Chamber of the Supreme Court has affirmed that the recording of images of individuals in publicly accessible spaces does not require judicial authorization, being regulated by Organic Law 4/1997, of August 4, governing the use of video cameras by the Security Forces and Bodies in public places (In this sense, see STS of 18-3-2005, 27-9-2002, and 15-2/1999 among others). The STS of 14-10-2002 affirms the legitimacy of recording images of individuals, without this implying a violation of the right to privacy or to one's own image when it states that the rights established by L.O. 5-5-82 regulating the Civil Protection of the Right to Honor, Personal and Family Privacy, and One's Own Image, cannot be considered absolutely unlimited.

From the perspective of data protection, the essential aspect is that there is an "unconsented treatment" of the image of an identified or identifiable natural person.

It will not be delved into the fact that the door where the device (digital peephole) is installed is not owned by the Community of property owners, but rather by the respondent, so the rules established in the Horizontal Property Law (Law 49/1960, of July 21, on horizontal property) would not apply in principle, which would apply in the case, for example, of placing the device on a wall owned by the community focusing on the transit hallway.

The claiming party only reports the fact of the installation of the device without providing any objective evidence regarding the "data treatment" associated with their person, family member(s), or another neighbor of the property, outside the cases permitted by law.

To obtain an image (personal data) of the affected individual, it is necessary to ring the bell of the device's owner, at which point a temporary recording of data associated with an identified or identifiable natural person can be obtained, making it easy to understand that in the case of poor neighborly relations, such action may not occur.

This type of device should also be understood as fulfilling a function of assistance to persons with disabilities or reduced mobility issues or advanced age, allowing them to check who is calling at their door or even for security reasons to visualize who is at their door and thereby prevent theft by force, for example, which would justify their presence based on a legitimate interest.

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III

This Agency cannot turn a blind eye to new technological advances, particularly regarding cameras, which have practically become part of our daily lives (e.g., almost everyone has mobile devices with built-in cameras).

However, this does not mean that these devices are used to continuously record or obtain data from third parties without their consent, thereby invading their privacy; rather, they are generally used for their intended purposes, namely, watching movies, checking news, searching for information, playing games, listening to music, etc.

Therefore, the criterion maintained by this Agency is that if there is no objective evidence demonstrating a disproportionate use of the device in question, its use is in accordance with the intended purpose, and it cannot order its removal from its location, as there is no established administrative infringement (e.g., E/01091/2019).

Finally, it would be difficult to imagine that the installation of such a device is intended for monitoring neighbors of a property in a transit area that would also allow knowledge of their comings and goings, with a gesture as simple as, for example, keeping the door open.

The device in question is a digital peephole, which in this case performs the same function as a "traditional" peephole, affecting the same common space, as a transit area for the neighbors of the landing of the property.

Notwithstanding the above, it should be emphasized to the respondent that the images obtained with the peephole cannot serve purposes other than those inherent to this type of device, and caution should be exercised in the "processing of the data" obtained with them; otherwise, it could affect the rights of third parties with the logical punitive consequences under various branches of law.

The issue, therefore, underlying the complaint presented is a matter whose analysis, in its more complex case, would correspond to civil jurisdictional bodies, only in the event of a true infringement of the right to privacy of third parties, which would arise from an inappropriate use of such devices.

Finally, it is not the responsibility of this body to assess the situation of conflict or bad neighborliness existing between the parties, a matter that should be resolved, if necessary, in the appropriate judicial instances, being advisable in any case to seek solutions in accordance with minimal guidelines of good neighborliness that prevent the transfer of the conflict to the competent judicial instances or its inclusion in the corresponding agenda of the Ordinary Meeting of neighbors of the homeowners' community.

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IV

In accordance with the above, no processing of the affected party's data has been found outside the cases permitted by current legislation, a reason that advises the filing of the present procedure as no administrative infringement has been established in the matter at hand.

Finally, the parties are reminded of the significance of the rights at stake, warning the respondent that a misuse of the installed device (digital peephole) may lead to a new administrative sanctioning procedure, where the lack of cooperation with this Agency will be considered when determining a hypothetical sanction, assuming the legal consequences of their actions.

In accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, AGREES:

FIRST: TO FILE the present proceedings.

SECOND: TO NOTIFY this resolution to A.A.A. and to the complaining party.

In accordance with the provisions of Article 50 of the LOPDGGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of

Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

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